

Dispute Chamber

Decision on the merits 73/2025 of April 23, 2025

File number: DOS-2024-02177

Subject: Complaint against BPost regarding the photographing by a postal employee of the complainant's identity card upon receipt of a registered shipment

The Dispute Chamber of the Data Protection Authority (hereinafter 'GBA'), composed of Mr. Hielke HIJMANS, chair, and Mr. Dirk Van Der Kelen and Mr. Romain Robert, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG";¹

Considering the internal rules of procedure, as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant";

The respondent:

BPost, with registered office at Anspachlaan 1 bus 1 – 1000 Brussels, with company number 0214.596.464, represented by Mr. Heidi Waem and Mr. Simon Verschaeve, hereinafter "the respondent".

1 The GBA reminds that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (WOG), and the new internal rules of procedure of the GBA, came into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures for the Dispute Chamber that commence from this date. The new WOG is available via this link: https://www.ejustice.just.fgov.be/cgi_loi/change_lg.pl?language=nl&la;=N&cn;=2017120311&table;_name=wet, and the internal rules of procedure via this link: . Files initiated before June 1, 2024, of which this file is a part, are subject to the provisions of the WOG and the internal rules of procedure as they existed before this date.

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I. Facts and Procedure

1. The subject of the complaint concerns the photographing by a postal employee of the complainant's identity card in the event that the complainant wishes to receive a registered shipment.

2. On May 3, 2024, the complainant filed a complaint with the Data Protection Authority against the respondent.

3. On June 18, 2024, the complaint was declared admissible by the First-Line Service based on Articles 58 and 60 WOG and was forwarded to the Dispute Chamber under Article 62, § 1 WOG.

4. On July 10, 2024, the Dispute Chamber decided based on Article 95, § 1, 1° and Article 98 WOG that the file is ready for substantive treatment and the parties involved were notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They were also informed under Article 99 WOG of the deadlines for submitting their defenses.

The scope of the case was established on the following alleged violations:

- Possible violation of Article 5.1.a) in conjunction with Article 6.1 of the GDPR due to the absence of a legal basis for the processing of the personal data on the complainant's identity card;
- Possible violation of Article 5.1.c) of the GDPR due to the lack of necessity to process all data from the complainant's identity card for the specific purposes of processing;
- Possible violation of Article 5.1.e) of the GDPR due to the retention of personal data longer than

necessary for the purposes of processing;

- Possible violation of Article 24 of the GDPR due to the lack of sufficient organizational measures to ensure compliance with the prescribed guidelines regarding personal data processing by all employees.

The deadline for receipt of the respondent's statement of defense was set for August 19, 2024, the deadline for the complainant's reply was set for September 16, 2024, and finally, the deadline for the respondent's rejoinder was set for October 14, 2024.

5. On July 11, 2024, the complainant electronically accepted all communications regarding the case, requested a copy of the file (Article 95, § 2, 3° WOG), which was provided to him on July 15, 2024, and indicated his desire to be heard.

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6.

On July 11, 2024, the respondent electronically accepts all communication regarding the case, requests a copy of the file (Article 95, § 2, 3° WOG), which was provided to him on July 15, 2024, and indicates his intention to exercise the right to be heard, in accordance with Article 98 WOG. In the same correspondence, the respondent requests an extension of the deadlines for submissions by one month.

7.

On July 15, 2024, the Disputes Chamber grants the respondent an extension of the submission deadline of two weeks. The scope of the case remains unchanged. The final date for receipt of the respondent's answer submission is set for September 2, 2024, the date for the complainant's reply submission is set for September 30, 2024, and finally, the date for the respondent's rejoinder submission is set for October 28, 2024.

8.

On September 2, 2024, the Disputes Chamber receives the answer submission from the respondent.

9.

On October 3, 2024, the Disputes Chamber receives a request for an extension from the complainant for the submission of his conclusions, which was granted on the same day. The new deadline for receipt of the complainant's answer submission is set for October 7, 2024, and the deadline for the respondent's rejoinder submission is set for November 4, 2024.

10.

On October 7, 2024, the Disputes Chamber receives the rejoinder submission from the complainant.

11.

On October 31, 2024, the Disputes Chamber receives the rejoinder submission from the respondent.

12.

On December 9, 2024, the parties are informed that the hearing will take place on January 21, 2025.

13.

On January 21, 2025, the parties are heard by the Disputes Chamber.

14.

On January 29, 2025, the minutes of the hearing are submitted to the parties.

15.

On February 11, 2025, the Disputes Chamber receives some comments from the respondent regarding the minutes, which it decides to include in its deliberation.

II. Reasoning

II.1. Subject of the complaint: description of the processing

16.

BPost was designated by the legislator in the law of January 26, 2018, concerning postal services (hereinafter 'Postal Services Act') as a provider of universal postal services, including "services related to registered mail and mail with...

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indicated value.² Article 9 of the Royal Decree implementing the Postal Services Act (hereinafter 'implementing RD')³ concerns the measures for the identification of the addressee or their authorized representative.⁴ In execution of this law and the implementing RD, a postal officer, on-site or at the

post office, requests the identity card of the recipient of a registered shipment for identification and takes a photo of the identity card with the designated device (hereinafter 'the Mobi') to demonstrate this identity check, given the legal safeguards that apply to a registered shipment. These photos of the identity cards are securely stored for 13 months, after which they are destroyed.

17. The complainant does not object to the verification of their identity using their identity card, but does object to the photographing of their identity card as proof of this identity check.

18. The respondent, as the employer of the postal employees, determines the purpose and means of this data processing. The respondent relies on the Postal Services Act and the implementing RD and is the data controller of this processing.

II.2. The admissibility of the complaint

19. The respondent argues that, although the complaint was filed before the entry into force of the amendment to the WOG, the admissibility declaration of the First Line Service (hereinafter 'ELD') dates from after that same entry into force. The complaint does not meet the new admissibility criteria because the complainant did not first exercise their rights and because there was already another procedure pending for similar facts before the Disputes Chamber. The respondent therefore believes that the complaint was inadmissible and was incorrectly referred to the Disputes Chamber. In the respondent's comments on the minutes of the hearing, the respondent clarifies their position: since there is no transitional arrangement for the WOG, as there is for the adjustment of the Internal Order Regulations of the GBA5, the respondent believes that the ELD

2 Article 15 §1 4° of the Act of January 26, 2018, concerning postal services.

3 Royal Decree of March 14, 2022, concerning postal services.

4 Article 9 § 1. Registered shipments are delivered against acknowledgment of receipt by the addressee or their authorized representative. The identity of the addressee or their authorized representative is verified based on an identity document. The capacity of the authorized representative is demonstrated in accordance with the provisions of Article 20. In order to demonstrate that the identity of the addressee or their authorized representative has indeed been verified, the postal service provider takes a handwritten, photographic, or electronic copy of the identity document or uses any other evidence they deem useful. The proof of delivery, of the verification of identity, and, if applicable, of the verification of the capacity of the authorized representative, is retained by the postal service provider for thirteen months.

§ 2. The identity document refers to any document by which one can ascertain the identity of a person, without limiting it to an identity card, passport, or driver's license. That document, which originates from a federal, regional, provincial, or municipal administrative authority, states the name and first name of the holder and is provided with a photo on which the holder is recognizable.

5 Article 56.3 of the Act of December 25, 2023, amending the Act of December 3, 2017, establishing the Data Protection Authority.

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The respondent argues that the new admissibility criteria should have been applied to the complaint. The respondent points out that the new admissibility criteria were already part of the settlement policy of the Disputes Chamber and thus represented a legal anchoring of a policy that had already been implemented. Finally, the respondent accuses the Disputes Chamber of not applying its own settlement policy, specifically the two criteria mentioned, in its decision regarding the merits of this case.

20.

Regarding the admissibility of the complaint, the Disputes Chamber refers to Judgment 2022/AR/42 in which the Market Court states: "[...] the LCA does not provide that the Disputes Chamber, once seized of a complaint, can make a decision on the admissibility of complaints addressed to the APD"⁶ and "It follows from the reading [of articles 94, 95, and 100 of the LCA] that the legislator did not foresee, for the Disputes Chamber, the possibility of making a decision regarding the admissibility of the complaint it has been seized with [...]"⁷. In this case, the First-Line Service has ruled that the complaint was admissible, and the Disputes Chamber cannot revisit this. Moreover, there is no prejudicial consequence for the respondent since the two criteria mentioned can also be assessed by the

Disputes Chamber in the context of a potential settlement decision, and the respondent still has all opportunities to defend against this complaint.

21.

Regarding the Disputes Chamber's decision not to dismiss the case but to address it on the merits, the Disputes Chamber refers to Judgment 2021/AR/1044 of the Market Court which states: "The argument put forward by the FOD FINANCIËN that the settlement policy was not followed by the Disputes Committee is unfounded. [...] The fact that a dismissal 'can' be made (article 100 §1, 1° WOG) does not grant a right to dismissal [...]"⁸. Whether or not the Disputes Chamber proceeds to a dismissal decision is its discretionary power; the settlement policy provides guidance to the parties but is in no case binding on the Disputes Chamber when it comes to the assessment of whether or not to dismiss complaints.

22.

The Disputes Chamber finds this argument unfounded.

II.3. The Powers of the Disputes Chamber

23.

The respondent believes that the complaint and the resulting alleged violations of the legal basis, the minimum data processing, and the storage limitation do not

6 Court of Appeal Brussels, Market Court section, judgment 2022/AR/42 of June 8, 2022, paragraph 20. Machine translation: "the WOG does not provide that the Disputes Chamber, once a complaint has been submitted to it, can make a decision on the admissibility of complaints addressed to the GBA."

7 Ibid, paragraph 21. Machine translation: "From the reading [of articles 94, 95, and 100 of the WOG] it is clear that the legislator did not foresee the possibility for the Disputes Chamber to make a decision on the admissibility of the complaint submitted to it."

8 Court of Appeal Brussels, Market Court section, judgment 2021/AR/1044 of December 1, 2021, paragraph 7.2.

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concerns violations committed by the respondent, as the contested procedure is prescribed by the implementing Royal Decree. The respondent also believes that the Dispute Chamber is not competent to monitor or enforce compliance with the internal guidelines of the respondent under Article 24 of the GDPR.

24.

In this case, personal data of the complainant is processed by the respondent. The complainant formulates a complaint regarding this processing against the respondent. Article 57.1.f) states that one of the tasks of a supervisory authority is to 'handle complaints from data subjects'. Article 32 of the WOG designates the Dispute Chamber as an 'administrative dispute body'. The Dispute Chamber is therefore competent to handle the complaint of the complainant. This decision does not aim to assess the law, as the respondent suggests, but rather to assess the processing of the personal data of the complainant by the respondent against the law, in this case, the GDPR. The assessment is based on the articles of the GDPR, particularly on the legal basis (Article 5.1.a) and Article 6.1 of the GDPR), the principle of data minimization (Article 5.1.c) of the GDPR), the principle of storage limitation (Article 5.1.e) of the GDPR), and the responsibilities of the data controller (Article 24 of the GDPR), as also clarified in the invitation to submit conclusions sent to the parties on July 10, 2024.

25.

In this context, the Dispute Chamber also refers to Judgment 2023/AR/801 of the Market Court which states: "By the contested decision, the APD did not postpone or suspend the application of the law of December 16, 2015. It has, in accordance with the powers conferred upon it by the GDPR and the APD Law [...], handled the complaint submitted to it, identified certain violations of the provisions of the GDPR, and made a series of decisions, having the power to suspend data processing contrary to legal provisions, as provided for in Article 58, §2, j) of the GDPR and Article 100, §1, 14° of the law of December 3, 2017 [...]"⁹

26.

The Dispute Chamber finds this argument unfounded.

II.4. The application of the ne bis in idem principle

27.

The respondent refers to the decision of the Dispute Chamber 102/2021 regarding the same processing, based on the same legal basis, and opposes another

9 Court of Appeal Brussels, Market Court section, judgment 2023/AR/801 of December 20, 2023, paragraph 22. Machine translation:

“In the contested decision, the GBA did not postpone or suspend the application of the law of December 16, 2015. It has, in accordance with the powers conferred upon it by the GDPR and the GBA law [...] handled the complaint submitted to it, identified certain violations of the provisions of the GDPR, and made a series of decisions, with the power to suspend data processing contrary to legal provisions, as provided for in Article 58, §2, j) of the GDPR and Article 100, §1, point 14, of the law of December 3, 2017.”

10 Dispute Chamber, decision 102/2021 of September 13, 2021.

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Assessment of the Dispute Chamber. The respondent points to the ne bis in idem principle.

28.

The Court of Justice of the European Union (hereinafter ‘CJEU’) has already clarified in the case BPost v. Belgian Competition Authority regarding the ne bis in idem principle that: “[...] the condition ‘idem’ requires that the material facts are the same. On the other hand, the ne bis in idem principle does not apply when the facts in question are not the same but merely similar.

The equality of the material facts is understood as a set of concrete circumstances arising from events that are essentially the same, as the same perpetrator is involved and they are inextricably linked in time and place [...]”.

29.

The facts in the decision of the Dispute Chamber 102/2021 concerned the same ‘perpetrator’, namely the respondent, but are not connected to the facts in the current complaint in terms of time and place. The decision 102/2021 concerns facts from 4 years prior to the facts in this complaint and does not involve the same addressee and thus by definition not the same place where the mail was delivered and the photo was taken. The Dispute Chamber also concludes that it concerns similar facts, but not the same facts.

30.

Since the condition ‘idem’ is a constitutive element of the ne bis in idem principle and this condition has not been met here, the Dispute Chamber rules that the ne bis in idem principle is not applicable and does not further address the respondent's arguments. The Dispute Chamber finds this plea unfounded.

II.5. The procedure for the Dispute Chamber

II.5.1. Violation of the principles of reasonableness, economy, and diligence

31.

The respondent argues that the Dispute Chamber violates the principles of reasonableness, economy, and diligence. He believes that the Dispute Chamber prioritizes this case without considering the impact of the processing and the efficiency of the potential intervention, thereby not acting as a normally prudent and careful administration. Regarding impact, he points to the Dispute Chamber's policy on non-prosecution, where none of the nine general criteria for significant societal impact and/or personal impact are applicable. The respondent considers the processing as a small-scale processing of the data of one person that does not fall into the category of special personal data. Regarding efficiency, the respondent refers to (i) the previously concluded procedure, where the complaint was deemed ‘manifestly unfounded’, (ii) a second procedure that is running concurrently for similar processes, (iii) the use on the GBA website of the implementing decree as an example of legal provision regarding the processing of data on an identity card, (iv) the publicity that the complainant has given to his complaint, (v) confusion between the concepts of identity document and identity card, (vi) the expansion of the scope of the complaint, and (vii) the failure to exercise the rights of the data subject by the complainant before filing the complaint.

32.

The oversight by the Dispute Chamber is not primarily aimed at resolving disputes between parties, but is one of the instruments of the GBA to ensure compliance with data protection rules, in accordance with the provisions in the EU Treaties, the GDPR, and the WOG. In his conclusions, the respondent states that he handles approximately 120,000 registered shipments per day and retains the photo for 13 months. The respondent theoretically therefore permanently has about 45,000,000 photos of identity cards available for inspection, including one or more photos of the complainant's identity card. Such processing involves processing with significant societal impact due to the number of individuals whose personal data are being processed and due to the sensitive data collected on the identity card. Moreover, it is within the discretionary power of the Dispute Chamber to choose what action to take in a particular case, which the respondent also acknowledges. The procedural elements raised by the respondent do not result in a violation of the rights of defense, as the respondent has had the opportunity to fully present his arguments through the response and rebuttal; furthermore, the respondent has been able to fully exercise his right to contest during the hearing of the Dispute Chamber. The respondent has thus suffered no disadvantage and the rights of defense have been respected.

33.

Furthermore, the respondent himself points to the impact of the processing of personal data under his responsibility and the efficiency of the Dispute Chamber's intervention when he states: "It should be noted that the Dispute Chamber, with its decision in this procedure, can contribute to restoring serenity in the public debate regarding the issuance of registered shipments by [the respondent]. In recent months, dozens of postal workers have been verbally, and in some cases physically, attacked while delivering [...]"

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registered shipments.”¹⁶ Despite his arguments to the contrary, the respondent implicitly acknowledges the impact of his processing and the efficiency of the intervention by the Dispute Chamber based on this procedure.

34.

The Dispute Chamber points out that it does not need to justify why the intervention of the GBA is reasonable, economical, and careful. However, for the sake of completeness, the Dispute Chamber highlights the following. Based on

- the significant societal impact of the data processing,
- the scope of the dispute as determined by the discretionary power of the Dispute Chamber in the invitation to conclusions, and
- the legal possibilities of the Dispute Chamber to monitor this processing and, if necessary, to adjust it,

there is no reason to doubt that the intervention of the GBA is reasonable, economical, and careful, and that the right of defense has been respected.

II.5.2. Violation of the principles of legal certainty and trust

35.

The respondent additionally argues that the principles of legal certainty and trust were not respected for four reasons: (i) the legal admissibility requirements were not applied, (ii) the handling goes against the non-prosecution policy, (iii) the GBA's website uses the implementing decree as an example of a legal provision regarding the processing of data on an identity card, and (iv) there is a previously concluded procedure in which the complaint was considered 'manifestly unfounded.'

36.

Regarding the admissibility requirements and the application of the non-prosecution policy, the Dispute Chamber refers to paragraphs 19-22. Concerning the example on the GBA's website and decision 102/2021, the Dispute Chamber points out that the scope of both the example and the decision is limited to an assessment of Article 6.1 of the GDPR (the legal basis for the processing). However, the scope of the current complaint is broader, which reasonably justifies a (new) intervention by the Dispute Chamber. Furthermore, the Dispute Chamber does not consider itself bound by the publication on the GBA's website, which is general and strictly informative in nature and is not based on the facts

in the present case and the defense of the parties. In relation to the previous decision of the Dispute Chamber, it is aware of the expectations it created by dismissing the complaint against the legal basis for the processing of the identity card by the respondent as 'manifestly unfounded.' Those expectations play a role in the assessment of the part of this complaint that concerns the legal basis for the processing.

II.6. The legality of the processing

II.6.1. Delimitation of the dispute

37.

Regarding the verification of the identity of the recipient of a registered shipment, the Dispute Chamber notes that the implementing decree speaks of two different but related processes. On the one hand, the implementing decree refers to the verification of identity by the respondent, and on the other hand, it refers to the proof of this identity verification carried out. The Dispute Chamber observes that the complainant does not oppose the identity verification using his identity card. However, he does oppose taking a photo of his identity card as proof of this identity verification. The Dispute Chamber will therefore only address the proof of the identity verification and will not comment on the identity verification itself carried out by the respondent.

38.

The Dispute Chamber also points out that the implementing decree refers to identity documents and identity cards, with the identity card being one of the options to serve as an identity document. In addition to the identity card, there are other identity documents listed in the implementing decree that may be useful for the respondent. The complainant has clearly stated in his conclusion that he specifically opposes the use of his identity card as proof of identity verification.

II.6.2. The legal basis of legal obligation

39.

In his conclusion, the respondent states: "Firstly, it is the case that requesting the identity document of the addressee of a registered shipment is prescribed by law, specifically Article 9, §1 of the Royal Decree of March 14, 2022."¹⁷

40.

The Dispute Chamber reminds that, in order to lawfully invoke the legal basis from Article 6.1.c of the GDPR, personal data may only be processed if this is necessary for the fulfillment of a legal obligation resting on the data controller. The processing must in these cases always have a basis in the law of the European Union or that of the relevant member state, which must also state the purpose of the processing. It must therefore be examined whether the conditions set out in that article are met in this case.

A clear, precise, and predictable legal basis

17 Document 24, BPost Synthesis Conclusion without documents, paragraph 59.

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41.

According to recital 41 of the GDPR, this legal basis or legislative measure must be clear and precise, and its application must be predictable for the data subjects, in accordance with the case law of the Court of Justice of the European Union (hereinafter 'Court of Justice') and the European Court of Human Rights (hereinafter 'ECHR').

42.

In this regard, the Dispute Chamber specifically refers to the judgment *Privacy International*¹⁸ of the Court of Justice dated October 6, 2020, in which the Court states that the legislation in question must contain clear and precise rules "on the scope and application of the measure in question, so that those whose personal data are concerned have sufficient safeguards that their data are effectively protected against the risk of misuse." The Court adds: "That regulation must be legally binding under national law and in particular indicate under what circumstances and conditions a measure providing for the processing of such data may be taken, thus ensuring that the interference is limited to what is strictly necessary [...]"¹⁹.

43.

Article 9, §1 of the implementing regulation requires the respondent to collect and retain proof of

identity verification for 13 months. The respondent argues that the purpose of this processing is to ensure the legal guarantees associated with the registered mail. In the event of a dispute, the respondent must be able to demonstrate that the mail was indeed delivered to the correct recipient (or their authorized representative). This purpose is reflected in the definition of registered mail, which is included in Article 2, 9° of the Postal Services Act.

44.

The proof of identity verification consists of a “handwritten, photographic, or electronic copy of the identity document” or “any other evidence that he deems useful.” The same article defines in the second paragraph the identity document: “any document by which one can verify the identity of a person, without limiting it to an identity card, a passport, or a driving license. That document, which comes from a federal, regional, provincial, or municipal administrative authority, states the name and first name of the holder and is provided with a photo on which the holder is recognizable.”

45.

The Dispute Chamber finds that in this legal basis:

- the purpose of the processing of personal data is clear, namely to verify the identity of the recipient of a registered mail and to obtain and retain proof of the identity verification, given the legal guarantees associated with the registered mail;
- the category of data subjects is clear, namely the individuals who receive a registered mail (the addressee or the authorized representative);
- the necessary personal data for this purpose are specified, namely the name, first name, and photo of the data subject;
- the retention period is specified, namely 13 months;
- the processing is predictable, namely a handwritten, photographic, or electronic copy of an official government document containing this personal data is taken at the time of delivery of the registered mail by the postal employee.

Necessity

46.

Pursuant to Article 6.1.c) of the GDPR, processing is lawful if and to the extent that the processing is necessary for the fulfillment of a legal obligation to which the data controller is subject. When personal data are processed, they must be adequate and relevant for the purpose.

47.

The Dispute Chamber, together with the respondent, notes that the Postal Services Act assigns a special legal value to registered mail. One of these guarantees is that the postal employee verifies the identity of the addressee, so that the registered mail is reliably left with the correct person. To be able to prove this verification, the Dispute Chamber finds it necessary to take and retain a copy of the document from the government that was effectively used for the identity verification.

Conclusion

48.

The Dispute Chamber concludes that there is a legal obligation on the part of the respondent under the Postal Services Act and the implementing regulation to collect and retain the name, first name, and photo of the complainant for the purpose of ensuring the legal guarantees of a registered mail.

Therefore, the Dispute Chamber finds no infringement of Article 5.1.a) in conjunction with Article 6.1 of the GDPR.

49.

This judgment is consistent with the decision of the Dispute Chamber of September 13, 2021.

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II.7. The Minimum Data Processing

50.

In the legal basis for the processing, the King has left the choice of the medium for the necessary personal data to the respondent, as long as it is a copy of a government document that contains the name, first name, and photo of the recipient, or any other evidence that the respondent deems useful. The King thus leaves it to the respondent to assess which medium is most suitable. The Disputes Chamber agrees with the respondent when it argues that this choice belongs to him and not to the

data subject, as the complainant seemed to insinuate.

51.

To make this choice, the respondent currently relies on the influence of the working conditions of postal employees, the number of registered mail items to be processed, and the authority of the copy as evidence. The respondent also opposes the choice of handwritten evidence due to possible errors in transcription and thus a potential infringement on the accuracy of the data in accordance with Article 5.1.d) of the GDPR.

52.

However, the Disputes Chamber notes that the respondent does not take into account the principle of minimum data processing from Article 5.1.c) of the GDPR in this assessment of the choice of medium. Moreover, the respondent argues that assessing minimum data processing would constitute a contra legem interpretation of the implementing decree since the choice of a photo from the identity card is literally included in this decree. The Disputes Chamber does not follow this reasoning of the respondent and points to the material scope of Article 2 of the GDPR and the primacy of Union law over national law. In this regard, the Disputes Chamber also refers to the 'Mediahuis' ruling of the Markets Court, in which the Court clearly states that a legal provision must be set aside if it is not in accordance with a clear Union legal provision.²⁰

53.

According to the principle of minimum data processing, established in Article 5.1.c) of the GDPR, personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. Recital 39 of the GDPR adds: "Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means."

54.

By taking a photo of the complainant's identity document, the respondent processes all personal data contained on this card and retains this data for 13 months. Since the name, first name, and photo of the recipient of the registered mail, in this case the complainant, are on the identity card, this processing is adequate for the purpose of processing.

55.

To perform an identity check, the postal employee only needs the data mentioned on the registered mail as a reference: the name, first name, and address. However, the identity card contains more data, such as the date of birth, place of birth, gender, nationality, identity card number, and validity period; the new e-ID also displays the national register number on the front of the card. All this data is not relevant for the respondent, as he has no reference data with which he could perform any additional checks or demonstrate. The respondent himself cites the identity card number in this context: "However, it can be argued that the identity card number can be considered a more sensitive piece of data, while the implementing decree of March 14, 2022 expressly provides for evidence (e.g., driving license) that does not contain such data from the identity card."²¹

56.

However, the Disputes Chamber notes that the respondent seems to have changed his position. In the communication from the respondent to the complainant dated May 14, 2024, after the complaint was filed, it states: "Regarding the procedure, there is an alternative to taking photos of the identity card. [...] The option to refuse the photo must be provided. [...]"²²

57.

Also, in the instructions to the postal workers that were added by the respondent to the documents, the procedure is described when a data subject refuses to have a photo taken of their identity document:

-
- "Check the identity [...]"
-
- Note the identity card number and the full name [...]"
-
- Take a photo of your notes with the above information
-
- [...]"²³

58.

The same procedure is also described in the frequently asked questions section of the webpage, as provided by the respondent in the documents: "If you prefer not to have a photo taken of your identity card for a registered mail item, there are some alternatives: [...] You can also ask the postal worker for your full name and your

20 Court of Appeal Brussels, Markets Court section, ruling 2024/AR/1690 of March 19, 2025, paragraph 20.

21 Document 24, BPost Synthesis Conclusion without documents, paragraph 65.

22 Attachment 20240514_Communication about your file_bpost.pdf to document 8, Complainant Request for copy of file and hearing + additional info, p. 1.

23 Document 12 – Report team briefing Z of October 18, 2023.pdf that is part of the respondent's reply conclusion.

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to note the identity card number on the absence notification and to take a photo of it.”²⁴

59.

In this regard, the Disputes Chamber refers to the advice of the GBA to the minister on the draft implementing decree²⁵:

“After inquiry, the applicant specifies the following:

‘The proof of correct delivery of the registered letter means that a signature and proof of identity of the addressee are collected.

[...]

-

Proof of identity:

•

The postman uses the Mobi to take a photo of the front of the identity card with the recipient's consent. When the postman knows the recipient, only the name and first name are recorded in the Mobi. If the recipient does not agree to having a photo taken of the front of the identity card, the postman notes the identity card number in the Mobi (or on the proof of delivery and takes a photo of this via the Mobi).’

•

[...]”²⁶. (emphasis by the Disputes Chamber)

60.

Regarding this existing policy of the respondent, the Disputes Chamber notes that the respondent assumes that it is up to the individual to refuse excessive processing of their personal data before offering a more data protection-friendly alternative. However, the Disputes Chamber points out that it is the responsibility of the data controller to apply the principle of minimal data processing in all cases.

61.

The Disputes Chamber finds that the respondent does not opt for a piece of evidence from which only the name, first name, and photo are processed, nor does it take any technical or organizational measures to prevent the processing of excessive personal data in the other pieces of evidence.

Conclusion

24 Document 16 – Extract from the page 'Frequently Asked Questions' identity document.pdf, which is part of the respondent's response.

25 GBA, Advice No. 211/2021 of November 16, 2021, draft royal decree concerning postal services (CO-A-2021-189), available at <https://www.gegevensbeschermingsautoriteit.be/publications/advies-nr.-211-2021.pdf>.

26 Ibid, paragraph 24.

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62.

In this case, the Disputes Chamber finds that the processing of a copy of the identity card constitutes a violation of the general principle of minimal data processing, one of the five core principles of the GDPR. The fact that the government has included this specific processing in the implementing

decision is therefore not in accordance with this principle and must be set aside or resolved with adequate technical and organizational measures. Such an assessment by the Disputes Chamber does not involve a contra legem interpretation but rather an application of the primacy of Union law over a national legal provision that is in conflict with it.

63.

The Disputes Chamber rules that the respondent violates Article 5.1.c) of the GDPR by processing an excess of personal data of the complainant that is not relevant and is not limited to what is necessary for the purpose of processing as established in the legal basis for this processing.

II.8. The Storage Limitation

64.

According to the principle of storage limitation, as laid down in Article 5.1.e) of the GDPR, personal data may only be retained as long as necessary for the purposes for which they were processed. The implementing decree stipulates in Article 9, §1 that proof of identity verification is retained for 13 months by the provider of postal services.

65.

The respondent argues that applying a shorter period than provided for in the implementing decree would constitute a shortcoming of the legal obligations resting on the respondent. They therefore securely retain this proof of identification for a duration of 13 months, after which it is automatically deleted.

66.

The Disputes Chamber notes that neither in the regulations nor by the respondent in their defenses is there any justification presented for why the retention period is set at 13 months. However, the retention period for proof of identification corresponds with the imposed retention period for proof of dispatch.

67.

Given the importance of the registered shipment and the purpose of processing the personal data, namely to provide proof of identification of the recipient of a registered shipment, and given that the retention period is explicitly mentioned in the regulations, the Disputes Chamber rules that the respondent does not violate Article 5.1.e) of the GDPR.

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II.9. The Responsibility of the Data Controller

68. The complainant accused the respondent in his complaint that the employees of the respondent were not aware of the organizational measures or did not apply these organizational measures.

69. Given the aforementioned issues regarding the minimal data processing and the problematic policy of the respondent, whereby the respondent expected the complainant to resist excessive data processing before offering an alternative, the Dispute Chamber does not find it appropriate to further address this aspect of the complaint. However, this does not detract from the fact that it is the responsibility of the respondent to take measures, where necessary, to ensure full compliance with all obligations arising from the GDPR that fall under its responsibility.

III. Corrective Measures and Sanctions

70. According to the wording of Article 100.1 of the WOG, the Dispute Chamber has the authority to:

- 1° dismiss a complaint;
- 2° order the discontinuation of prosecution;
- 3° order a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with requests from the affected party to exercise their rights;
- 7° order that the affected party be informed of the security issue;
- 8° order that the processing be temporarily or permanently frozen, limited, or prohibited;
- 9° order that the processing be brought into compliance;
- 10° order the rectification, limitation, or deletion of data and the notification thereof to the recipients of the data;
- 11° order the withdrawal of the recognition of certification bodies;

- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international institution;

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Such an appeal can be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Code of Civil Procedure. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Code of Civil Procedure, or via the e-Deposit IT system of Justice (Article 32ter of the Code of Civil Procedure).

(Get). Hielke HIJMANS

Chairman of the Dispute Chamber

27 The statement must include under penalty of nullity:

- 1° the day, month, and year;
- 2° the name, first name, residence of the applicant and, where applicable, their capacity and their national register or company number;
- 3° the name, first name, residence and, where applicable, the capacity of the person to be summoned;
- 4° the subject and a brief summary of the grounds of the claim;
- 5° the judge before whom the claim is brought;
- 6° the signature of the applicant or their lawyer.

28 The statement with its annex is to be sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.